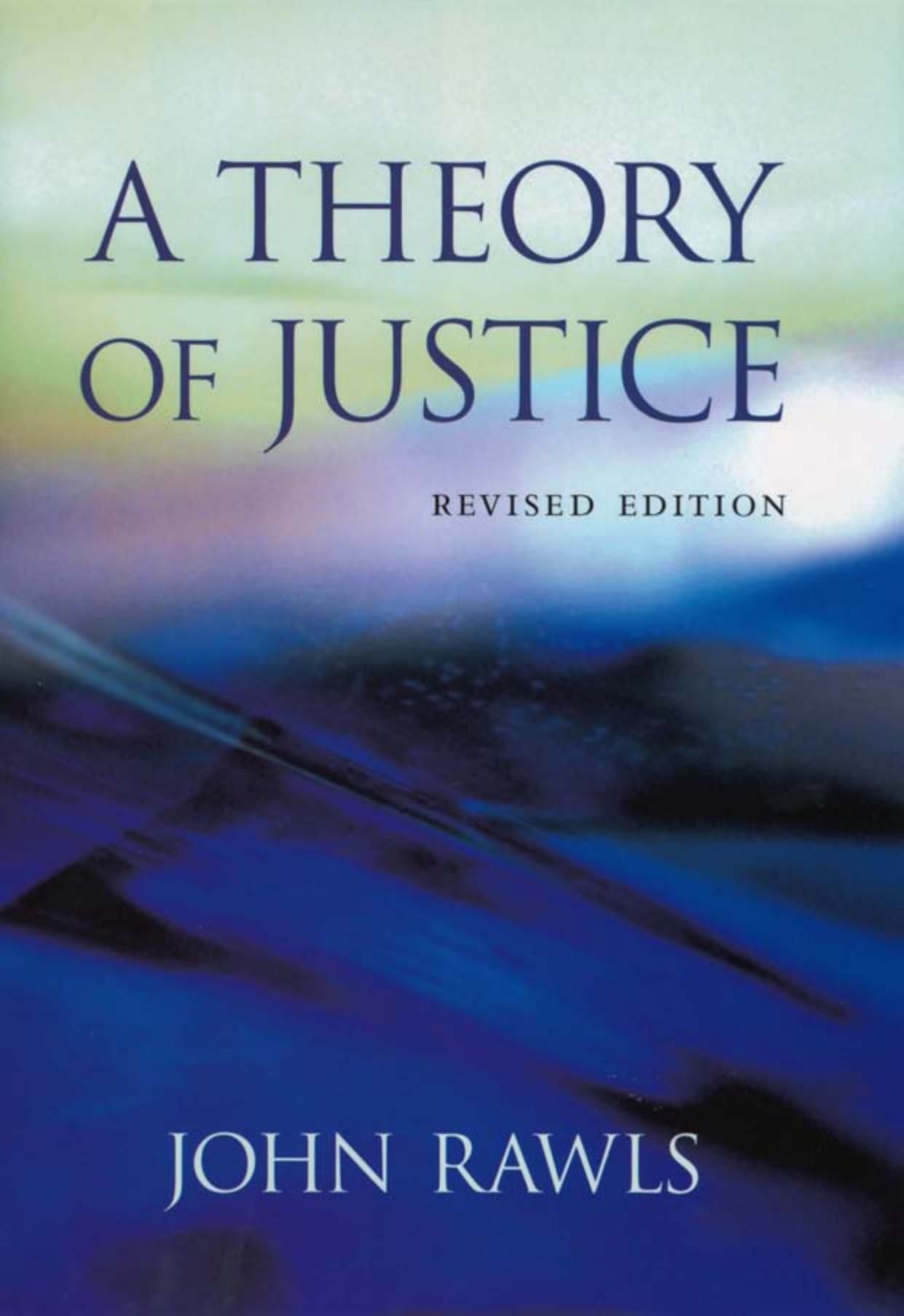




A THEORY OF JUSTICE

REVISED EDITION

JOHN RAWLS

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Printed in the United States of America

This book is a revised edition of *A Theory of Justice*,
published in 1971 by Harvard University Press.

Library of Congress Cataloging-in-Publication Data

Rawls, John, 1921–

A theory of justice / John Rawls. — Rev. ed.

p. cm.

Includes bibliographical references and index.

ISBN 0-674-00077-3 (cloth : alk. paper). —

ISBN 0-674-00078-1 (paper : alk. paper)

1. Justice. I. Title.

JC578.R38 1999

320'.01'1—dc21 99-29110

CONTENTS

PREFACE FOR THE REVISED EDITION xi

PREFACE xvii

Part One. Theory

CHAPTER I. JUSTICE AS FAIRNESS 3

1. The Role of Justice 3
2. The Subject of Justice 6
3. The Main Idea of the Theory of Justice 10
4. The Original Position and Justification 15
5. Classical Utilitarianism 19
6. Some Related Contrasts 24
7. Intuitionism 30
8. The Priority Problem 36
9. Some Remarks about Moral Theory 40

CHAPTER II. THE PRINCIPLES OF JUSTICE 47

10. Institutions and Formal Justice 47
11. Two Principles of Justice 52
12. Interpretations of the Second Principle 57
13. Democratic Equality and the Difference Principle 65
14. Fair Equality of Opportunity and Pure Procedural Justice 73
15. Primary Social Goods as the Basis of Expectations 78
16. Relevant Social Positions 81
17. The Tendency to Equality 86

- 18. Principles for Individuals: The Principle of Fairness 93
- 19. Principles for Individuals: The Natural Duties 98

CHAPTER III. THE ORIGINAL POSITION 102

- 20. The Nature of the Argument for Conceptions of Justice 102
- 21. The Presentation of Alternatives 105
- 22. The Circumstances of Justice 109
- 23. The Formal Constraints of the Concept of Right 112
- 24. The Veil of Ignorance 118
- 25. The Rationality of the Parties 123
- 26. The Reasoning Leading to the Two Principles of Justice 130
- 27. The Reasoning Leading to the Principle of Average Utility 139
- 28. Some Difficulties with the Average Principle 144
- 29. Some Main Grounds for the Two Principles of Justice 153
- 30. Classical Utilitarianism, Impartiality, and Benevolence 160

Part Two. Institutions

CHAPTER IV. EQUAL LIBERTY 171

- 31. The Four-Stage Sequence 171
- 32. The Concept of Liberty 176
- 33. Equal Liberty of Conscience 180
- 34. Toleration and the Common Interest 186
- 35. Toleration of the Intolerant 190
- 36. Political Justice and the Constitution 194
- 37. Limitations on the Principle of Participation 200
- 38. The Rule of Law 206
- 39. The Priority of Liberty Defined 214
- 40. The Kantian Interpretation of Justice as Fairness 221

CHAPTER V. DISTRIBUTIVE SHARES 228

- 41. The Concept of Justice in Political Economy 228
- 42. Some Remarks about Economic Systems 234
- 43. Background Institutions for Distributive Justice 242
- 44. The Problem of Justice between Generations 251
- 45. Time Preference 259
- 46. Further Cases of Priority 263
- 47. The Precepts of Justice 267
- 48. Legitimate Expectations and Moral Desert 273
- 49. Comparison with Mixed Conceptions 277
- 50. The Principle of Perfection 285

CHAPTER VI. DUTY AND OBLIGATION 293

- 51. The Arguments for the Principles of Natural Duty 293
- 52. The Arguments for the Principle of Fairness 301
- 53. The Duty to Comply with an Unjust Law 308
- 54. The Status of Majority Rule 313
- 55. The Definition of Civil Disobedience 319
- 56. The Definition of Conscientious Refusal 323
- 57. The Justification of Civil Disobedience 326
- 58. The Justification of Conscientious Refusal 331
- 59. The Role of Civil Disobedience 335

Part Three. Ends

CHAPTER VII. GOODNESS AS RATIONALITY 347

- 60. The Need for a Theory of the Good 347
- 61. The Definition of Good for Simpler Cases 350
- 62. A Note on Meaning 355
- 63. The Definition of Good for Plans of Life 358
- 64. Deliberative Rationality 365
- 65. The Aristotelian Principle 372
- 66. The Definition of Good Applied to Persons 380
- 67. Self-Respect, Excellences, and Shame 386
- 68. Several Contrasts between the Right and the Good 392

CHAPTER VIII. THE SENSE OF JUSTICE 397

- 69. The Concept of a Well-Ordered Society 397
- 70. The Morality of Authority 405
- 71. The Morality of Association 409
- 72. The Morality of Principles 414
- 73. Features of the Moral Sentiments 420
- 74. The Connection between Moral and Natural Attitudes 425
- 75. The Principles of Moral Psychology 429
- 76. The Problem of Relative Stability 434
- 77. The Basis of Equality 441

CHAPTER IX. THE GOOD OF JUSTICE 450

- 78. Autonomy and Objectivity 450
- 79. The Idea of Social Union 456
- 80. The Problem of Envy 464
- 81. Envy and Equality 468

Contents

82. The Grounds for the Priority of Liberty	474
83. Happiness and Dominant Ends	480
84. Hedonism as a Method of Choice	486
85. The Unity of the Self	491
86. The Good of the Sense of Justice	496
87. Concluding Remarks on Justification	506
Conversion Table	517
Index	521

more efficient), since it depends upon citizens' knowing their relative valuations of public and private goods. We should also observe that in the exchange branch representatives (and citizens through their representatives) are quite properly guided by their interests. Whereas in describing the other branches, we assume the principles of justice to be applied to institutions solely on the basis of general information. We try to work out what rational legislators suitably constrained by the veil of ignorance, and in this sense impartial, would enact to realize the conception of justice. Ideal legislators do not vote their interests. Strictly speaking, then, the idea of the exchange branch is not part of the four-stage sequence. Nevertheless, there is likely to be confusion between government activities and public expenditures required to uphold just background institutions and those that follow from the benefit principle. With the distinction of branches in mind, the conception of justice as fairness becomes, I believe, more plausible. To be sure, it is often hard to distinguish between the two kinds of government activities, and some public goods may appear to fall into both categories. I leave these problems aside here, hoping that the theoretical distinction is clear enough for present purposes.

44. THE PROBLEM OF JUSTICE BETWEEN GENERATIONS

We must now consider the question of justice between generations. There is no need to stress the difficulties that this problem raises. It subjects any ethical theory to severe if not impossible tests. Nevertheless, the account of justice as fairness would be incomplete without some discussion of this important matter. The problem arises in the present context because the question is still open whether the social system as a whole, the competitive economy surrounded by the appropriate family of background institutions, can be made to satisfy the two principles of justice. The answer is bound to depend, to some degree anyway, on the level at which the social minimum is to be set. But this in turn connects up with how far the present generation is bound to respect the claims of its successors.

So far I have said nothing about how generous the social minimum should be. Common sense might be content to say that the right level depends upon the average wealth of the country and that, other things equal, the minimum should be higher when the average increases. Or one might say that the proper level is determined by customary expectations. But these suggestions are unsatisfactory. The first is not precise enough since it does not say how the minimum depends on average wealth and it

overlooks other relevant aspects such as distribution; while the second provides no criterion for telling when customary expectations are themselves reasonable. Once the difference principle is accepted, however, it follows that the minimum is to be set at that point which, taking wages into account, maximizes the expectations of the least advantaged group. By adjusting the amount of transfers (for example, the size of supplementary income payments), it is possible to increase or decrease the prospects of the more disadvantaged, their index of primary goods (as measured by wages plus transfers), so as to achieve the desired result.

Now offhand it might seem that the difference principle requires a very high minimum. One naturally imagines that the greater wealth of those better off is to be scaled down until eventually everyone has nearly the same income. But this is a misconception, although it might hold in special circumstances. The appropriate expectation in applying the difference principle is that of the long-term prospects of the least favored extending over future generations. Each generation must not only preserve the gains of culture and civilization, and maintain intact those just institutions that have been established, but it must also put aside in each period of time a suitable amount of real capital accumulation. This saving may take various forms from net investment in machinery and other means of production to investment in learning and education. Assuming for the moment that a just savings principle is available which tells us how great investment should be, the level of the social minimum is determined. Suppose for simplicity that the minimum is adjusted by transfers paid for by proportional expenditure (or income) taxes. In this case raising the minimum entails increasing the proportion by which consumption (or income) is taxed. Presumably as this fraction becomes larger there comes a point beyond which one of two things happens. Either the appropriate savings cannot be made or the greater taxes interfere so much with economic efficiency that the prospects of the least advantaged in the present generation are no longer improved but begin to decline. In either event the correct minimum has been reached. The difference principle is satisfied and no further increase is called for.

These comments about how to specify the social minimum have led us to the problem of justice between generations. Finding a just savings principle is one aspect of this question.²⁰ Now I believe that it is not

20. This problem is often discussed by economists in the context of the theory of economic growth. For an exposition see A. K. Sen, "On Optimizing the Rate of Saving," *Economic Journal*, vol. 71 (1961); James Tobin, *National Economic Policy* (New Haven, Yale University Press, 1966), ch. IX; and R. M. Solow, *Growth Theory* (New York, Oxford University Press, 1970), ch. V. In an extensive

possible, at present anyway, to define precise limits on what the rate of savings should be. How the burden of capital accumulation and of raising the standard of civilization and culture is to be shared between generations seems to admit of no definite answer. It does not follow, however, that certain significant ethical constraints cannot be formulated. As I have said, a moral theory characterizes a point of view from which policies are to be assessed; and it may often be clear that a suggested answer is mistaken even if an alternative doctrine is not ready to hand. Thus it seems evident, for example, that the classical principle of utility leads in the wrong direction for questions of justice between generations. For if one takes the size of the population as variable, and postulates a high marginal productivity of capital and a very distant time horizon, maximizing total utility may lead to an excessive rate of accumulation (at least in the near future). Since from a moral point of view there are no grounds for discounting future well-being on the basis of pure time preference, the conclusion is all the more likely that the greater advantages of future generations will be sufficiently large to outweigh most any present sacrifices. This may prove true if only because with more capital and better technology it will be possible to support a sufficiently large population. Thus the utilitarian doctrine may direct us to demand heavy sacrifices of the poorer generations for the sake of greater advantages for later ones that are far better off. But this calculus of advantages, which balances the losses of some against benefits to others, appears even less justified in the case of generations than among contemporaries. Even if we cannot define a precise just savings principle, we should be able to avoid this sort of extreme.

Now the contract doctrine looks at the problem from the standpoint of the original position and requires the parties to adopt an appropriate savings principle. It seems clear that as they stand the two principles of justice must be adjusted to this question. For when the difference principle is applied to the question of saving over generations, it entails either

literature, see F. P. Ramsey, "A Mathematical Theory of Saving," *Economic Journal*, vol. 38 (1928), reprinted in Arrow and Scitovsky, *Readings in Welfare Economics*; T. C. Koopmans, "On the Concept of Optimal Economic Growth" (1965) in *Scientific Papers of T. C. Koopmans* (Berlin, Springer Verlag, 1970). Sukamoy Chakravarty, *Capital and Development Planning* (Cambridge, M.I.T. Press, 1969), is a theoretical survey which touches upon the normative questions. If for theoretical purposes one thinks of the ideal society as one whose economy is in a steady state of growth (possibly zero), and which is at the same time just, then the savings problem is to choose a principle for sharing the burdens of getting to that growth path (or to such a path if there is more than one), and of maintaining the justice of the necessary arrangements once this is achieved. In the text, however, I do not pursue this suggestion; my discussion is at a more primitive level.

no saving at all or not enough saving to improve social circumstances sufficiently so that all the equal liberties can be effectively exercised. In following a just savings principle, each generation makes a contribution to those coming later and receives from its predecessors. There is no way for later generations to help the situation of the least fortunate earlier generation. Thus the difference principle does not hold for the question of justice between generations and the problem of saving must be treated in some other manner.

Some have thought the different fortunes of generations to be unjust. Herzen remarks that human development is a kind of chronological unfairness, since those who live later profit from the labor of their predecessors without paying the same price. And Kant thought it disconcerting that earlier generations should carry their burdens only for the sake of the later ones and that only the last should have the good fortune to dwell in the completed building.²¹ These feelings while entirely natural are misplaced. For although the relation between generations is a special one, it gives rise to no insuperable difficulty.

It is a natural fact that generations are spread out in time and actual economic benefits flow only in one direction. This situation is unalterable, and so the question of justice does not arise. What is just or unjust is how institutions deal with natural limitations and the way they are set up to take advantage of historical possibilities. Obviously if all generations are to gain (except perhaps the earlier ones), the parties must agree to a savings principle that insures that each generation receives its due from its predecessors and does its fair share for those to come. The only economic exchanges between generations are, so to speak, virtual ones, that is, compensating adjustments that can be made in the original position when a just savings principle is adopted.

Now when the parties consider this problem they do not know to which generation they belong or, what comes to the same thing, the stage of civilization of their society. They have no way of telling whether it is poor or relatively wealthy, largely agricultural or already industrialized, and so on. The veil of ignorance is complete in these respects. But since we take the present time of entry interpretation of the original position (§24), the parties know that they are contemporaries; and so unless we modify our initial assumptions, there is no reason for them to agree to any saving

21. The remark of Alexander Herzen is from Isaiah Berlin's introduction to Franco Venturi, *Roots of Revolution* (New York, Alfred Knopf, 1960), p. xx. For Kant, see "Idea for a Universal History with a Cosmopolitan Purpose," in *Political Writings*, ed. Hans Reiss and trans. H. B. Nisbet (Cambridge, The University Press, 1970), p. 44.

whatever. Earlier generations will have either saved or not; there is nothing the parties can do to affect that. So to achieve a reasonable result, we assume first, that the parties represent family lines, say, who care at least about their more immediate descendants; and second, that the principle adopted must be such that they wish all earlier generations to have followed it (§22). These constraints, together with the veil of ignorance, are to insure that any one generation looks out for all.

In arriving at a just saving principle (or better, limits on such principles), the parties are to ask themselves how much they would be willing to save at each stage of advance on the assumption that all other generations have saved, or will save, in accordance with the same criterion. They are to consider their willingness to save at any given phase of civilization with the understanding that the rates they propose are to regulate the whole span of accumulation. It is essential to note that a savings principle is a rule that assigns an appropriate rate (or range of rates) to each level of advance, that is, a rule that determines a schedule of rates. Presumably different rates are assigned to different stages. When people are poor and saving is difficult, a lower rate of saving should be required; whereas in a wealthier society greater savings may reasonably be expected since the real burden of saving is less. Eventually, once just institutions are firmly established and all the basic liberties effectively realized, the net accumulation asked for falls to zero. At this point a society meets its duty of justice by maintaining just institutions and preserving their material base. The just savings principle applies to what a society is to save as a matter of justice. If its members wish to save for other purposes, that is another matter.

It is impossible to be very specific about the schedule of rates (or the range of rates) that would be acknowledged; the most that we can hope from these intuitive considerations is that certain extremes will be excluded. Thus we may assume that the parties avoid imposing very high rates at the earlier stages of accumulation, for even though they would benefit from this if they come later, they must be able to accept these rates in good faith should their society turn out to be poor. The strains of commitment apply here just as before (§29). On the other hand, they will want all generations to provide some saving (excluding special circumstances), since it is to our advantage if our predecessors have done their share. These observations establish wide limits for the savings rule. To narrow the range somewhat further, we suppose the parties to ask what is reasonable for members of adjacent generations to expect of one another at each level of advance. They try to piece together a just savings sched-

ule by balancing how much they would be willing to save for their more immediate descendants against what they would feel entitled to claim of their more immediate predecessors. Thus imagining themselves to be fathers, say, they are to ascertain how much they should set aside for their sons and grandsons by noting what they would believe themselves entitled to claim of their fathers and grandfathers. When they arrive at the estimate that seems fair from both sides, with due allowance made for the improvement in circumstances, then the fair rate (or range of rates) for that stage is specified. Once this is done for all stages, the just savings principle is defined. Of course, the parties must throughout keep in mind the objective of the accumulation process, namely, a state of society with a material base sufficient to establish effective just institutions within which the basic liberties can all be realized. Assuming that the savings principle answers to these conditions, no generation can find fault with any other when it is followed, no matter how far removed they are in time.

The question of time preference and matters of priority I shall leave aside until the next sections. For the present I wish to point out several features of the contract approach. First of all, while it is evident that a just savings principle cannot literally be adopted democratically, the conception of the original position achieves the same result. Since no one knows to which generation he belongs, the question is viewed from the standpoint of each and a fair accommodation is expressed by the principle adopted. All generations are virtually represented in the original position, since the same principle would always be chosen. An ideally democratic decision will result, one that is fairly adjusted to the claims of each generation and therefore satisfying the precept that what touches all concerns all. Moreover, it is immediately obvious that every generation, except possibly the first, gains when a reasonable rate of saving is maintained. The process of accumulation, once it is begun and carried through, is to the good of all subsequent generations. Each passes on to the next a fair equivalent in real capital as defined by a just savings principle. (It should be kept in mind here that capital is not only factories and machines, and so on, but also the knowledge and culture, as well as the techniques and skills, that make possible just institutions and the fair value of liberty.) This equivalent is in return for what is received from previous generations that enables the later ones to enjoy a better life in a more just society.

It is also characteristic of the contract doctrine to define a just society as the aim of the course of accumulation. This feature derives from the

fact that an ideal conception of a just basic structure is embedded in the principles chosen in the original position. In this respect, justice as fairness contrasts with utilitarian views (§41). The just savings principle can be regarded as an understanding between generations to carry their fair share of the burden of realizing and preserving a just society. The end of the savings process is set up in advance, although only the general outlines can be discerned. Particular circumstances as they arise will in time determine the more detailed aspects. But in any event we are not bound to go on maximizing indefinitely. Indeed, it is for this reason that the savings principle is agreed to after the principles of justice for institutions, even though this principle constrains the difference principle. These principles tell us what to strive for. The savings principle represents an interpretation, arrived at in the original position, of the previously accepted natural duty to uphold and to further just institutions. In this case the ethical problem is that of agreeing on a path over time which treats all generations justly during the whole course of a society's history. What seems fair to persons in the original position defines justice in this instance as in others.

The significance of the last stage of society should not, however, be misinterpreted. While all generations are to do their part in reaching the just state of things beyond which no further net saving is required, this state is not to be thought of as that alone which gives meaning and purpose to the whole process. To the contrary, all generations have their appropriate aims. They are not subordinate to one another any more than individuals are and no generation has stronger claims than any other. The life of a people is conceived as a scheme of cooperation spread out in historical time. It is to be governed by the same conception of justice that regulates the cooperation of contemporaries.

Finally, the last stage at which saving is called for is not one of great abundance. This consideration deserves perhaps some emphasis. Further wealth might not be superfluous for some purposes; and indeed average income may not, in absolute terms, be very high. Justice does not require that early generations save so that later ones are simply more wealthy. Saving is demanded as a condition of bringing about the full realization of just institutions and the equal liberties. If additional accumulation is to be undertaken, it is for other reasons. It is a mistake to believe that a just and good society must wait upon a high material standard of life. What men want is meaningful work in free association with others, these associations regulating their relations to one another within a framework of just basic institutions. To achieve this state of things great wealth is not

necessary. In fact, beyond some point it is more likely to be a positive hindrance, a meaningless distraction at best if not a temptation to indulgence and emptiness. (Of course, the definition of meaningful work is a problem in itself. Though it is not a problem of justice, a few remarks in §79 are addressed to it.)

We now have to combine the just savings principle with the two principles of justice. This is done by supposing that this principle is defined from the standpoint of the least advantaged in each generation. It is the representative men from this group as it extends over time who by virtual adjustments are to specify the rate of accumulation. They undertake in effect to constrain the application of the difference principle. In any generation their expectations are to be maximized subject to the condition of putting aside the savings that would be acknowledged. Thus the complete statement of the difference principle includes the savings principle as a constraint. Whereas the first principle of justice and the principle of fair opportunity are prior to the difference principle within generations, the savings principle limits its scope between them.

Of course, the saving of the less favored need not be done by their taking an active part in the investment process. Rather it normally consists of their approving of the economic and other arrangements necessary for the appropriate accumulation. Saving is achieved by accepting as a political judgment those policies designed to improve the standard of life of later generations of the least advantaged, thereby abstaining from the immediate gains which are available. By supporting these arrangements the required saving can be made, and no representative man in any generation of the most disadvantaged can complain of another for not doing his part.

So much, then, for a brief sketch of some of the main features of the just savings principle. We can now see that persons in different generations have duties and obligations to one another just as contemporaries do. The present generation cannot do as it pleases but is bound by the principles that would be chosen in the original position to define justice between persons at different moments of time. In addition, men have a natural duty to uphold and to further just institutions and for this the improvement of civilization up to a certain level is required. The derivation of these duties and obligations may seem at first a somewhat far-fetched application of the contract doctrine. Nevertheless these requirements would be acknowledged in the original position, and so the conception of justice as fairness covers these matters without any change in its basic idea.

45. TIME PREFERENCE

I have assumed that in choosing a principle of savings the persons in the original position have no pure time preference. We need to consider the reasons for this presumption. In the case of an individual the avoidance of pure time preference is a feature of being rational. As Sidgwick maintains, rationality implies an impartial concern for all parts of our life. The mere difference of location in time, of something's being earlier or later, is not in itself a rational ground for having more or less regard for it. Of course, a present or near future advantage may be counted more heavily on account of its greater certainty or probability, and we should take into consideration how our situation and capacity for particular enjoyments will change. But none of these things justifies our preferring a lesser present to a greater future good simply because of its nearer temporal position²² (§64).

Now Sidgwick thought that the notions of universal good and individual good are in essential respects similar. He held that just as the good of one person is constructed by comparison and integration of the different goods of each moment as they follow one another in time, so the universal good is constructed by the comparison and integration of the good of many different individuals. The relations of the parts to the whole and to each other are analogous in each case, being founded on the aggregative principle of utility.²³ The just savings principle for society must not, then, be affected by pure time preference, since as before the different temporal position of persons and generations does not in itself justify treating them differently.

Since in justice as fairness the principles of justice are not extensions of the principles of rational choice for one person, the argument against time preference must be of another kind. The question is settled by reference to the original position; but once it is seen from this perspective, we reach the same conclusion. There is no reason for the parties to give any weight to mere position in time. They have to choose a rate of saving for each level of civilization. If they make a distinction between earlier and more remote periods because, say, future states of affairs seem less important now, the present state of affairs will seem less important in the future. Although any decision has to be made now, there is no ground for their using today's discount of the future rather than the future's

22. See *The Methods of Ethics*, 7th ed. (London, Macmillan, 1907), p. 381. Time preference is also rejected by Ramsey, "A Mathematical Theory of Saving."

23. *Methods of Ethics*, p. 382. See also §30, note 37.

discount of today. The situation is symmetrical and one choice is as arbitrary as the other.²⁴ Since the persons in the original position take up the standpoint of each period, being subject to the veil of ignorance, this symmetry is clear to them and they will not consent to a principle that weighs nearer periods more or less heavily. Only in this way can they arrive at a consistent agreement from all points of view, for to acknowledge a principle of time preference is to authorize persons differently situated temporally to assess one another's claims by different weights based solely on this contingency.

As with rational prudence, the rejection of pure time preference is not incompatible with taking uncertainties and changing circumstances into account; nor does it rule out using an interest rate (in either a socialist or a private-property economy) to ration limited funds for investment. The restriction is rather that in first principles of justice we are not allowed to treat generations differently solely on the grounds that they are earlier or later in time. The original position is so defined that it leads to the correct principle in this respect. In the case of the individual, pure time preference is irrational: it means that he is not viewing all moments as equally parts of one life. In the case of society, pure time preference is unjust: it means (in the more common instance when the future is discounted) that the living take advantage of their position in time to favor their own interests.

The contract view agrees, then, with Sidgwick in rejecting time preference as a grounds of social choice. The living may, if they allow themselves to be moved by such considerations, wrong their predecessors and descendants. Now this contention may seem contrary to democratic principles, for it is sometimes said that these require that the wishes of the present generation should determine social policy. Of course, it is assumed that these preferences need to be clarified and ascertained under the appropriate conditions. Collective saving for the future has many aspects of a public good, and the isolation and assurance problems arise in this case.²⁵ But supposing that these difficulties are overcome and that the informed collective judgment of the present generation is known under the requisite conditions, it may be thought that a democratic view of the state does not countenance the government's intervening for the sake of future generations even when the public judgment is manifestly mistaken.

24. See Sen, "On Optimizing the Rate of Savings," p. 482.

25. See Sen, *ibid.*, p. 479; and S. A. Marglin, "The Social Rate of Discount and the Optimal Rate of Investment," *Quarterly Journal of Economics*, vol. 77 (1963), pp. 100–109.

Whether this contention is correct depends upon how it is interpreted. There can be no objection to it as a description of a democratic constitution. Once the public will is clearly expressed in legislation and social policies, the government cannot override it without ceasing to be democratic. It is not authorized to nullify the views of the electorate as to how much saving is to be undertaken. If a democratic regime is justified, then the government's having this power would normally lead to a greater injustice on balance. We are to decide between constitutional arrangements according to how likely it is that they will yield just and effective legislation. A democrat is one who believes that a democratic constitution best meets this criterion. But his conception of justice includes a provision for the just claims of future generations. Even if as a practical matter in the choice of regimes the electorate should have the final say, this is only because it is more likely to be correct than a government empowered to override its wishes. Since, however, a just constitution even under favorable conditions is a case of imperfect procedural justice, the people may still decide wrongly. By causing irreversible damages say, they may perpetuate grave offenses against other generations which under another form of government might have been prevented. Moreover, the injustice may be perfectly evident and demonstrable as such by the same conception of justice that underlies the democratic regime itself. Several of the principles of this conception may actually be more or less explicit in the constitution and frequently cited by the judiciary and informed opinion in interpreting it.

In these cases, then, there is no reason why a democrat may not oppose the public will by suitable forms of noncompliance, or even as a government official try to circumvent it. Although one believes in the soundness of a democratic constitution and accepts the duty to support it, the duty to comply with particular laws may be overridden in situations where the collective judgment is sufficiently unjust. There is nothing sacrosanct about the public decision concerning the level of savings; and its bias with respect to time preference deserves no special respect. In fact the absence of the injured parties, the future generations, makes it all the more open to question. One does not cease to be a democrat unless one thinks that some other form of government would be better and one's efforts are directed to this end. As long as one does not believe this, but thinks instead that appropriate forms of noncompliance, for example, acts of civil disobedience or conscientious refusal, are both necessary and reasonable ways to correct democratically enacted policies, then one's conduct is consistent with accepting a democratic constitution. In the next

chapter I shall discuss this matter in more detail. For the moment the essential point is that the collective will concerning the provision for the future is subject, as all other social decisions are, to the principles of justice. The peculiar features of this case do not make it an exception.

We should observe that to reject pure time preference as a first principle is compatible with recognizing that a certain discounting of the future may improve otherwise defective criteria. For example, I have already remarked that the utilitarian principle may lead to an extremely high rate of saving which imposes excessive hardships on earlier generations. This consequence can be to some degree corrected by discounting the welfare of those living in the future. Since the well-being of later generations is made to count for less, not so much need be saved as before. It is also possible to vary the accumulation required by adjusting the parameters in the postulated utility function. I cannot discuss these questions here.²⁶ Unhappily I can only express the opinion that these devices simply mitigate the consequences of mistaken principles. The situation is in some respects similar to that found with the intuitionistic conception which combines the standard of utility with a principle of equality (see §7). There the criterion of equality suitably weighted serves to correct the utility criterion when neither principle taken alone would prove acceptable. Thus in an analogous way, having started with the idea that the appropriate rate of saving is the one which maximizes social utility over time (maximizes some integral), we may obtain a more plausible result if the welfare of future generations is weighted less heavily; and the most suitable discount may depend upon how swiftly population is growing, upon the productivity of capital, and so on. What we are doing is adjusting certain parameters so as to reach a conclusion more in line with our intuitive judgments. We may find that to achieve justice between generations, these modifications in the principle of utility are required. Certainly introducing time preference may be an improvement in such cases; but I believe that its being invoked in this way is an indication that we have started from an incorrect conception. There is a difference between the situation here and the previously mentioned intuitionistic view. Unlike the principle of equality, time preference has no intrinsic ethical appeal. It is introduced in a purely ad hoc way to moderate the consequences of the utility criterion.

26. See Chakravarty, *Capital and Development Planning*, pp. 39f, 47, 63–65, 249f. Solow, *Growth Theory*, pp. 79–87, gives an account of the mathematical problem.

46. FURTHER CASES OF PRIORITY

The problem of just savings may be used to illustrate further cases of the priority of justice. One feature of the contract doctrine is that it places an upper bound on how much a generation can be asked to save for the welfare of later generations. The just savings principle acts as a constraint on the rate of accumulation. Each age is to do its fair share in achieving the conditions necessary for just institutions and the fair value of liberty; but beyond this more cannot be required. Now it may be objected that particularly when the sum of advantages is very great and represents long-term developments, higher rates of saving may be demanded. Some may go further and maintain that inequalities in wealth and authority violating the second principle of justice may be justified if the subsequent economic and social benefits are large enough. To support their view they may point to instances in which we seem to accept such inequalities and rates of accumulation for the sake of the welfare of later generations. Keynes remarks, for example, that the immense accumulations of capital built up before the First World War could never have come about in a society in which wealth was equally divided.²⁷ Society in the nineteenth century, he says, was arranged so as to place the increased income in the hands of those least likely to consume it. The new rich were not brought up to large expenditures and preferred to the enjoyments of immediate consumption the power which investment gave. It was precisely the inequality of the distribution of wealth which made possible the rapid build-up of capital and the more or less steady improvement in the general standard of living of everyone. It is this fact, in Keynes's opinion, that provided the main justification of the capitalist system. If the rich had spent their new wealth on themselves, such a regime would have been rejected as intolerable. Certainly there are more efficient and just ways of raising the level of well-being and culture than that Keynes describes. It is only in special circumstances, including the frugality of the capitalist class as opposed to the self-indulgence of the aristocracy, that a society should obtain investment funds by endowing the rich with more than they feel they can decently spend on themselves. But the essential point here is that Keynes's justification, whether or not its premises are sound, can be made to turn solely on improving the situation of the working class. Although their circumstances appear harsh, Keynes presumably main-

27. See J. M. Keynes, *The Economic Consequences of the Peace* (London, Macmillan, 1919), pp. 18–22.

tains that while there were many ostensible injustices in the system, there was no real possibility that these could have been removed and the conditions of the less advantaged made better. Under other arrangements the position of the laboring man would have been even worse. We need not consider whether these contentions are true. It suffices to note that, contrary to what one might have thought, Keynes does not say that the hardships of the poor are justified by the greater welfare of later generations. And this accords with the priority of justice over efficiency and a greater sum of advantages. Whenever the constraints of justice in the matter of savings are infringed, it must be shown that circumstances are such that not to trespass upon them would lead to an even greater injury to those on whom the injustice falls. This case is analogous to those already discussed under the heading of the priority of liberty (see §39).

It is clear that the inequalities that Keynes had in mind also violate the principle of fair equality of opportunity. Thus we are led to consider what must be argued to excuse the infringement of this criterion and how to formulate the appropriate priority rule.²⁸ Many writers hold that fair equality of opportunity would have grave consequences. They believe that some sort of hierarchical social structure and a governing class with pervasive hereditary features are essential for the public good. Political power should be exercised by men experienced in, and educated from childhood to assume, the constitutional traditions of their society, men whose ambitions are moderated by the privileges and amenities of their assured position. Otherwise the stakes become too high and those lacking in culture and conviction contend with one another to control the power of the state for their narrow ends. Thus Burke believed that the great families of the ruling stratum contribute by the wisdom of their political rule to the general welfare from generation to generation.²⁹ And Hegel thought that restrictions on equality of opportunity such as primogeniture are essential to insure a landed class especially suited to political rule in virtue of its independence from the state, the quest for profit, and the manifold contingencies of civil society.³⁰ Privileged family and property arrangements prepare those favored by them to take a clearer view of the universal interest for the benefit of the whole society. Of course, one need not favor anything like a rigidly stratified system; one may maintain to

28. In this and the next several paragraphs, I am indebted to Michael Lessnoff. See his essay in *Political Studies*, vol. 19 (1971), pp. 75f. The statement and discussion of the priority rules here and in §39 have benefited from his criticisms.

29. See *Reflections on the Revolution in France* (London, J.M. Dent and Sons, 1910), p. 49; and John Plamenatz, *Man and Society* (London, Longmans, Green, 1963), vol. 1, pp. 346–351.

30. *Philosophy of Right*, §306, trans. T. M. Knox (Oxford, The Clarendon Press, 1942), p. 199.

the contrary that it is essential for the vigor of the governing class that persons of unusual talents should be able to make their way into it and be fully accepted. But this proviso is compatible with denying the principle of fair opportunity.

Now to be consistent with the priority of fair opportunity over the difference principle, it is not enough to argue, as Burke and Hegel appear to, that the whole of society including the least favored benefit from certain restrictions on equality of opportunity. We must also claim that the attempt to eliminate these inequalities would so interfere with the social system and the operations of the economy that in the long run anyway the opportunities of the disadvantaged would be even more limited. The priority of fair opportunity, as in the parallel case of the priority of liberty, means that we must appeal to the chances given to those with the lesser opportunity. We must hold that a wider range of more desirable alternatives is open to them than otherwise would be the case.

I shall not pursue these complications further. We should however note that although the internal life and culture of the family influence, perhaps as much as anything else, a child's motivation and his capacity to gain from education, and so in turn his life prospects, these effects are not necessarily inconsistent with fair equality of opportunity. Even in a well-ordered society that satisfies the two principles of justice, the family may be a barrier to equal chances between individuals. For as I have defined it, the second principle only requires equal life prospects in all sectors of society for those similarly endowed and motivated. If there are variations among families in the same sector in how they shape the child's aspirations, then while fair equality of opportunity may obtain between sectors, equal chances between individuals will not. This possibility raises the question as to how far the notion of equality of opportunity can be carried; but I defer comment on this until later (§77). I shall only remark here that following the difference principle and the priority rules it suggests reduces the urgency to achieve perfect equality of opportunity.

I shall not examine whether there are sound arguments overriding the principle of fair equality of opportunity in favor of a hierarchical class structure. These matters are not part of the theory of justice. The relevant point is that while such contentions may sometimes appear self-serving and hypocritical, they have the right form when they claim (whether correctly or not) that the opportunities of the least favored sectors of the community would be still more limited if these inequalities were removed. One is to hold that they are not unjust, since the conditions for achieving the full realization of the principles of justice do not exist.

Having noted these cases of priority, I now wish to give the final statement of the two principles of justice for institutions. For the sake of completeness, I shall give a full statement including earlier formulations.

FIRST PRINCIPLE

Each person is to have an equal right to the most extensive total system of equal basic liberties compatible with a similar system of liberty for all.

SECOND PRINCIPLE

Social and economic inequalities are to be arranged so that they are both:

- (a) to the greatest benefit of the least advantaged, consistent with the just savings principle, and
- (b) attached to offices and positions open to all under conditions of fair equality of opportunity.

FIRST PRIORITY RULE (THE PRIORITY OF LIBERTY)

The principles of justice are to be ranked in lexical order and therefore the basic liberties can be restricted only for the sake of liberty. There are two cases:

- (a) a less extensive liberty must strengthen the total system of liberties shared by all;
- (b) a less than equal liberty must be acceptable to those with the lesser liberty.

SECOND PRIORITY RULE (THE PRIORITY OF JUSTICE OVER EFFICIENCY AND WELFARE)

The second principle of justice is lexically prior to the principle of efficiency and to that of maximizing the sum of advantages; and fair opportunity is prior to the difference principle. There are two cases:

- (a) an inequality of opportunity must enhance the opportunities of those with the lesser opportunity;

(b) an excessive rate of saving must on balance mitigate the burden of those bearing this hardship.

By way of comment, these principles and priority rules are no doubt incomplete. Other modifications will surely have to be made, but I shall not further complicate the statement of the principles. It suffices to observe that when we come to nonideal theory, the lexical ordering of the two principles, and the valuations that this ordering implies, suggest priority rules which seem to be reasonable enough in many cases. By various examples I have tried to illustrate how these rules can be used and to indicate their plausibility. Thus the ranking of the principles of justice in ideal theory reflects back and guides the application of these principles to nonideal situations. It identifies which limitations need to be dealt with first. In the more extreme and tangled instances of nonideal theory this priority of rules will no doubt fail; and indeed, we may be able to find no satisfactory answer at all. But we must try to postpone the day of reckoning as long as possible, and try to arrange society so that it never comes.

47. THE PRECEPTS OF JUSTICE

The sketch of the system of institutions that satisfies the two principles of justice is now complete. Once the just rate of savings is ascertained or the appropriate range of rates specified, we have a criterion for adjusting the level of the social minimum. The sum of transfers and benefits from essential public goods should be arranged so as to enhance the expectations of the least favored consistent with the required savings and the maintenance of equal liberties. When the basic structure takes this form the distribution that results will be just (or at least not unjust) whatever it is. Each receives that total income (earnings plus transfers) to which he is entitled under the public system of rules upon which his legitimate expectations are founded.

Now, as we saw earlier (§14), a central feature of this conception of distributive justice is that it contains a large element of pure procedural justice. No attempt is made to define the just distribution of goods and services on the basis of information about the preferences and claims of particular individuals. This sort of knowledge is regarded as irrelevant from a suitably general point of view; and in any case, it introduces complexities that cannot be handled by principles of tolerable simplicity